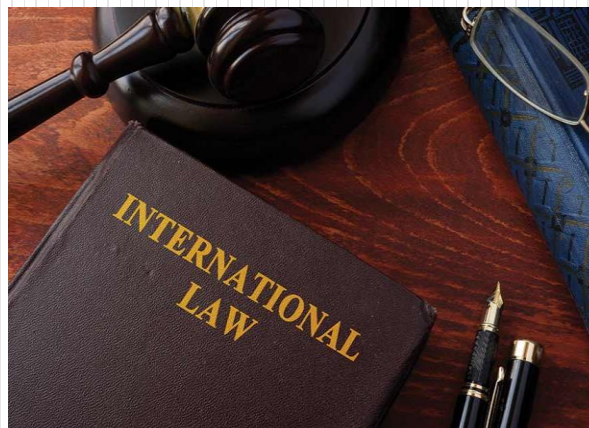


Public International Law

Chapter One

The Nature and Development of International Law

By: Mahilet Abraham



The Concept of International Law

- **International Law**: is a collection of laws that are accepted as governing the relations between states.
- It originated between 1830-1840.
- The term was coined by the English philosopher Jeremy Bentham (1748-1832).
- There are three types of international law.
 - I. Public international law
 - II. Private international law
 - III. Supranational law

- **Public International Law**: is the law that applies to international actions, whether committed by States, international organizations, or even individuals.
- Is that body of law which is composed of the principles and rules of conduct which states feel bound to and do observe in their relations to each other.

Continued

- Also includes rules of law relating to the function of international institutions or organizing their relations with each other and the states and to the individuals as well as certain rules of law relating to individuals and non-state entities in so far as the rights and duties of such individuals and non-state entities are the concern of the international communities.
- **Private International Law**: governs private conflicts between individuals, rather than between states.

Continued

- **Supranational Law**: refers to the situation wherein nations surrender to the court their right to make certain judicial decisions.
- The decisions made by a court appointed by supranational law take priority over the decisions made that are made by national courts. E.g. EU is an organization that deals in international treaties and uses a supranational legal system.
- The European Court of Justice rules over all the courts within the member states of the EU in accordance with EU law.
- Another e.g. WTO

Continued

- There are also two branches of international law.
 1. Jus Gentium and
 2. Jus Inter Gentes
- **Jus Gentium**: is not a statute or legal code, but more of an accepted body of laws that governs the relations between countries.
- **Jus Inter Gentes**: refers to the body of treaties and/or agreements that are mutually acceptable to both countries.

Public International Law vs. Private International Law

- **Private international law/conflict of laws:** has little to do with Public International Law.
- Conflict of laws is that part of the private law of a country which deals with cases having a foreign element, that is to say, contact with some system of law other than that of the forum state.
- Such a contract may exist for instance because a contract was made or has been performed in a foreign country or because a tort was committed there or because some property was situated there, the parties to a particular case or contract are non-nationals of the forum state e.g. divorce cases.

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- Conflict of law is a necessary part of the domestic law of each country because different countries have different legal systems containing different rules while Public International Law seeks primarily to regulate relations between sovereign states amongst inter se (themselves) as well as other international law persons.
- **N/B** - in other words, Public International Law is at least in theory the same everywhere while rules of conflict of laws are different from one country to another.

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No.	Public International Law	Private International Law
1.	Is the body of legal rules, which applied between sovereign states and other international personalities.	Regulates relationship between private persons (natural or legal) of two different states.
2.	Rules are outcome of international custom and treaties.	Rules are framed by the State legislature.
3.	Is enforced by international pressure and fear e.g. breakage of diplomatic relations, sanctions etc.	Is enforced by the concerned State executive.
4.	There is no predetermined court.	Courts are predetermined.
5.	Is the same for all states.	Differ from state to state.

Historical Development of International Law

- Contemporary system of Public International Law is normally traced back in terms of its order and structure to *The Peace of Westphalia 1648* which marked the end of the 30yrs war in Europe.
- However, it was not then that International relations started. This was because evidence was produced of beliefs of rules and procedure regarding international law dates back over 5000 years.
- From the earliest times, rules of conduct to regulate relations between independent communities in their usual were not felt necessary and emerged from usages observed by these communities in their usual relationship.

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- Treaties, immunities of diplomatic envoys and certain laws and usages of war existed in the Middle Ages before the dawn of Christianity e.g. in Egypt and India.
- Around 2100BC, a solemn treaty was signed between the rulers of Lagash and Umma, the city-states situated in the area known to historians as Mesopotamia.
- It was inscribed on a stone block and concerned the establishment of a defined boundary to be respected by both sides under pain of alienating a number of Sumerian gods.

Continued

- The next major instance was in 1400BC where the *Egyptian Pharaoh Ramses II* concluded a *Treaty of Peace Alliance and Extradition* with the King of Cheta which recognized territorial sovereignty over certain areas of each ruler and provided for the extradition of refugees and the exchange of diplomatic envoys.
- The role of ancient Israel must also be noted.
- A universal ethical stance coupled with rules relating to warfare was handed down to other peoples and religions and the demand for justice and a fair system of law founded upon strict morality permeated the thought and conduct of subsequent generations.

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- For example, the Prophet Isaiah declared that sworn agreements, even where made with the enemy, must be performed. Peace and social justice were the keys to man's existence, not power.
- There were also historical cases of recourse to international arbitration and mediation on registration in ancient Greece, China and the early Islamic world.
- However, the predominant approach of ancient civilizations was geographically and culturally restricted.
- There was no conception of an international community of states co-existing within a defined framework.

Continued

- The scope for any 'international law' of states was extremely limited and all that one can point to is the existence of certain ideals, such as the sanctity of treaties, which have continued to this day as important elements in society.
- But the notion of a universal community with its ideal of world order was not in evidence.
- In the period of the Greece city states there developed some international law though regionally limited composed of customary rules which had crystallized into law from long standing usages followed/observed by these states not only among themselves, but also as between them and the neighboring states.

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- Underlying the rules were deep religious influences characteristic of an era in which the distinctions between law, morality, justice and religion were not sharply drawn.
- No sense of a world community can be traced to Greek ideology in spite of the growth of Greek colonies throughout the Mediterranean area.
- This was left to the able administrators of the Roman Empire.
- Roman civilization before its expansion and conquest witnessed the making of treaties with Latin cities under which Latin and Romans were given rights in each other's court and premised mutual cooperation.

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- The Romans had a profound respect for organization and the law.
- The law knitted together their empire and constituted a vital source of reference for every inhabitant of the far flung domain.
- Once Rome became an empire, the Romans organized their relations with foreigners on the basis of **Jus Fetiale** and **Jus Gentium**.
- The **Jus Fetiale** consisted of religious rules which governed Romans external relations and formal declarations of war which inter alia recognized the inviolability of Ambassadors and was at the origin of the distinction between just and unjust war.

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- On the other hand, **Jus Gentium** was a Roman solution to the necessity of regulating legal relations between roman citizens and foreigners as Rome expanded.
- *Jus Gentium* simplified rules to govern the relations between foreigners, and between foreigners and citizens.
- A special magistrate **Praetor Peregrinus** was appointed in 242 BC (whose function was to oversee all legal relationships, including bureaucratic and commercial matters, within the empire) and created law called **Jus Gentium** acceptable to both roman citizens and foreigners.

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- This law was the 1st truly international law although it essentially regulated relations between private individuals.
- It was based on the commercial law in use in the Mediterranean trade the **Jus Civile** which was applicable to relations between roman citizens and was less formalistic and based on the principles of equity and good faith.
- The distinction between **Jus Civile** and **Jus Gentium** was erased when Roman citizenship was granted to all male inhabitants of the empire in 212 A.D.
- However, **Jus Gentium** did not disappear but became an essential part of Roman law and greatly influenced all European Legal Systems and through them Public International Law.

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- From Ancient Rome, international law also inherited **the Doctrine of the Universal law of Nature** known as **natural law** which was developed by the Stoic philosophers of ancient Greece and adopted by the Romans.
- This doctrine considered law as the product of right reason emanating from assumptions about the nature of man and society.
- Because natural law is the expression of right reason inherent in nature and man and discoverable by reason, it applies universally and it is unchanging and everlasting.

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- Reference must also be made to the growth of Islam.
- Its approach to International relations and law was predicated upon a state of hostility towards the non-Muslim world and the concept of unity, Dar al-Islam, as between Muslim countries.
- Generally speaking, humane rules of warfare were developed and the 'peoples of the book' (Jews and Christians) were treated better than non-believers, although in an inferior position to Muslims.
- Once the period of conquest was over and power was consolidated, norms governing conduct with non-muslim states began to develop.

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- The law dealing with diplomats was founded upon notions of hospitality and safety (aman), while rules governing International agreements grew out of the concept of respecting promises made.
- The Middle Ages were characterized by the authority of the organized Church and the comprehensive structure of power that it commanded.
- All Europe was of one religion, and the ecclesiastical law applied to all, notwithstanding tribal or regional affiliations.
- For much of the period, there were struggles between the religious authorities and the rulers of the Holy Roman Empire.

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- These conflicts were eventually resolved in favor of the Papacy, but the victory over secularism proved of relatively short duration.
- Religion and a common legacy derived from the Roman Empire were strongly unifying influences, while political and regional rivalries were not.
- But before a recognized system of international law could be created, social changes were essential.
- Of particular importance during this era was the authority of the Holy Roman Empire and the supranational character of canon law.

Continued

- Out of necessity, the European merchants created their own rules of conduct on fair dealing which formed **Lex Mercatoria**.
- During the same time, maritime customs and usages were formed.
- The High seas were no man's land but with the development of **Maritime Commerce** it became necessary to establish some rules and standards.
- The rules of the high seas were based on the **Rhodian Sea Law**, a codification undertaken under the **Byzantine Empire** were compiled into widely recognized collections that became accepted all through out Europe.

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- The middle ages also saw the rise of nation states that led in turn to the process of the formation of rules of customary international law from usages and practices followed by such states in their mutual relations.
- For instance, there were the microscopic Italian states that maintained diplomatic relations with each other and with the outside world that led to the development of certain rules relating to diplomatic envoys and their inviolability.
- Such commercial and maritime codes while at this stage merely expressions of national legal systems were amongst the forerunners of international law because they were created and nurtured upon a backcloth of cross national contacts and reflected the need for rules that would cover international situations.

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- Such rules, growing out of the early Middle Ages, constituted the seeds of international law, but before they could flourish, European thought had first to be developed by that intellectual explosion known as the Renaissance.
- This complex of ideas changed the face of European society and ushered in the modern era of scientific humanistic and individualistic thought.
- The collapse of the Byzantine Empire centered on Constantinople before the Turkish armies in 1453 drove many Greek scholars to seek sanctuary in Italy and enliven European's cultural life.

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- The introduction of printing during the 15th century provided the means to disseminate knowledge, and the undermining of feudalism in the wake of economic growth and the rise of the merchant classes provided the background to the new inquiring attitudes taking shape.
- Europe's developing self-confidence manifested itself in a sustained drive overseas for wealth and luxury items.
- By the end of the 15th century, the Arabs had been ousted from the Iberian Peninsula and the Americas reach.

Continued

- The rise of the nation-states of England, France and Spain, in particular, characterized the process of the creation of territorially consolidated independent units, in theory and doctrine, as well as in fact.
- This led to a higher degree of interaction between sovereign entities and thus the need to regulate such activities in a generally acceptable fashion.
- The pursuit of political power and supremacy became overt and recognized, as Machiavelli's *The Prince* (1513) demonstrated.

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- The city-states of Italy struggled for supremacy and papacy too became a secular power.
- From these hectic struggles emerged many of the staples of modern international life; diplomacy, statesmanship, the theory of the balance of power and the idea of a community of states.
- Notions such as these are immediately appreciable and one can identify various maneuvers for political supremacy.
- Alliances, betrayals, manipulations of state institutions and the drive for power are not unknown to us.
- We recognize the roots of our society.

Continued

- It was the evolution of the concept of an international community of separate, sovereign, if competing, states, that marks the beginning of what is understood by international law.
- The Renaissance bequeathed the prerequisites of independent, critical thought and a humanistic, secular approach to life as well as the political framework for the future.
- But it is the latter factor which is vital to the subsequent growth of international law.

Continued

- The Reformation and the European religious wars that followed emphasized this, as did the growing power of the nations.
- In many ways these wars marked the decline of a continental system founded on religion and the birth of a continental system founded on the supremacy of the state.
- Throughout these countries the necessity was felt for a new conception of human as well as state relationships.
- This search was precipitated, as has been intimated, by the decline of the Church and the rise of what might be termed 'free-thinking'.

Continued

- The theory of international law was naturally deeply involved in this reappraisal of political life and it was tremendously influenced by the rediscovery of Greco-Roman ideas.
- The Renaissance stimulated a rebirth of Hellenic studies and ideas of Natural Law, in particular, became popular.
- Thus, a distinct value-system to underpin international relations was brought into being and the law of nations was heralded as part of the universal law of nature.
- With the rise of the modern state and the emancipation of international relations, the doctrine of sovereignty emerged.

Continued

- This concept, first analysed systematically in 1576 in the *Six Livres de la Republique* by **Jean Bodin** was intended to deal with the structure of authority within the modern state.
- Bodin, who based his study upon his perception of the politics of Europe rather than on a theoretical discussion of absolute principles, emphasized the necessity for a sovereign power within the state that would make the laws.
- While such a sovereign could not be bound by the laws he himself instituted, he was subject to the laws of God and of nature.

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- The idea of the sovereign as supreme legislator was in the course of time transmuted into the principle which gave the state supreme power vis-à-vis other states.
- The state was regarded as being above the law.
- Such notions as these formed the intellectual basis of the line of thought known as positivism which will be discussed later.
- The early theorists of international law were deeply involved with the ideas of Natural law and used them as the basis of their philosophies.
- Included within that complex of Natural Law principles from which they constructed their theories was the significant merging of Christian and Natural law ideas that occurred in the philosophy of St. Thomas Aquinas.

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- He maintained that Natural law formed part of the law of God, and was the participation by rational creatures in the Eternal law.
- It complemented that part of the Eternal Law which had been divinely revealed.
- Reason declared Aquinas, was the essence of man and thus must be involved in the ordering of life according to the divine will.
- Natural law was the fount of moral behavior as well as of social and political institutions and it led to a theory of conditional acceptance of authority with unjust laws being unacceptable.
- Aquinas' views of the late thirteenth century can be regarded as basic to an understanding of present Catholic attitudes, but should be confused with the later interpretation of Natural Law which stressed the concepts of natural rights.

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- It is with such an intellectual background that Renaissance scholars approached the question of the basis and justification of a system of international law.
- Maine, a British historical lawyer, wrote that the birth of modern international law was the grandest function of the law of nature and while that is arguable, the point must be taken.
- International law began to emerge as a separate topic to be studied within itself, although derived from the principle of Natural law.

Founders of Modern International Law

- During the same time, a number of jurists began to consider a revolution of the communities of independent sovereign states and to write about different problems of the law of sovereign states recognizing the necessity of somebody of rules to regulate certain aspects of relations between such states.
- Where there were no established customary rules, these jurists devised and fashioned working principles by reason of analogy.
- Not only did they draw from the principles of Roman law but also had to recourse the precedence of ancient history, theology, canon law and the semi theological concept of the law of nature.

Continued

- Among these early jurists were *Francisco de Vitoria of the Spanish school of international law (1480-1546)* (Professor of Theology at the University of Salamanca) whose treatise *Reflectionis de Indis Noviter Inventis* confirmed the universal validity of international law and its application in the Americas: *The Italian school of Law representative Alberico Gentili (1552-1608)* who conceived the law of nations as a universal and natural law applicable between independent pre states and free common wealth.

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- Francisco's lectures were preserved by his students and published posthumously.
- He demonstrated a remarkably progressive attitude for his time towards the Spanish conquest of the South American Indians and contrary to the views prevalent until then, maintained that the Indian peoples should be regarded as nations with their own legitimate interests.
- War against them could only be justified on the grounds of a just interests.
- War against them could only be justified on the grounds of a just cause.
- International law was founded on the universal law of nature and this meant that non-Europeans must be included within its ambit.

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- However, Vitoria by no means advocated the recognition of the Indian nations as equal to Christian states of Europe.
- For him, opposing the work of the missionaries in the territories was a just reason for war, and he adopted a rather extensive view as to the rights of the Spaniards in South America.
- Victoria was no liberal and indeed acted on behalf of the Spanish Inquisition, but his lectures did mark a step forward in the right direction.
- Suarez (1548-1617), was a Jesuit and Professor of Theology and deeply immersed in medieval culture.

Continued

- He noted that the obligatory character of international law was based upon Natural Law, while its substance derived from the Natural Law rule of carrying out agreements entered into.
- *Hugo Grotius (1583-1645)*, a Dutch scholar considered the greatest of the early writers of international law.
- His treatise *De Jure Belli ac Pacis* which 1st appeared in 1625 has been acknowledged as the 1st comprehensive and systematic treatise of positivists international law.
- One central doctrine in Grotius treatise was the acceptance of the law of nature as an independent source of the rule of law of nations apart from customs.
- His work was continually relied upon as a point of reference and authority in the decisions of courts and text books and later writings of standing.

Continued

- Grotius finally excised theology from international law and emphasized the irrelevance in such a study of any conception of a divine law.
- He remarked that the law of nature would be valid even if there were no God.
- A statement which although suitably clothed in religious protestation was extremely daring.
- The law of nature now reverted to being founded exclusively on reason.
- Justice was part of man's social make-up and thus not only useful but essential.

Continued

- Grotius conceived of a comprehensive system of international law and his work rapidly became a university textbook theological distinction between a just and an unjust war, a notion that was soon to disappear from treaties on international law, but which in some way underpins modern approaches to aggression, self-defence and liberation.
- Besides his earlier work *Mare Liberum* (1609) distinguished Grotius as the historic standard bearer of *the doctrine of the freedom of the seas*.
- In his work, Grotius argued that it would be against a natural law to rule over the sea because no country was able to monopolize control over the ocean because of its immensity, lack of stability and lack of fixed limit.

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- Therefore, Grotius opposed the 'closed seas' of the Portuguese that was later elucidated by the English writer John Selden and emphasized instead the principle that the nations could not appropriate to themselves the high seas.
- They belonged to all.
- It must, of course, be mentioned, parenthetically, that this theory happened to accord rather nicely with prevailing Dutch ideas as to free trade and the needs in expanding commercial empire.

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- However, this merely points up what must not be disregarded, namely that concepts of law as of politics and other disciplines are firmly rooted in the world of reality and reflect contemporary preoccupation.
- No theory cultural and social environment. To ignore this is to distort the theory itself.
- **Read: Malcolm N. Shaw page 21 to 35.**
- The evolution of international law during the two centuries after Grotius was marked by the final revolution of the modern state system in Europe a process that was greatly influenced by *the Peace of Westphalia 1648*.

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- The major countries of Europe had been involved in the war which started in **1618** as a result of the struggle between Catholic and Protestant countries but had soon turned out to be an all-out struggle in military and political regimony in Europe.
- The treaties of peace were signed in the ***Westphalia towns of Munster and Osnabruck*** but are considered in law as one single instrument.
- The treaties constitute a watershed in the evolution of the modern international community and legal order.
- First, they recognized Protestantism at an international level and consequently legitimized the existence of states based on Calvinism and Lutheran faith.
- Hence forth, even from the point of view of religion, it was recognized that the state was independent of the church.

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- Secondly, the treaty granted the members of the Holy Roman Empire **The Jus Foederationis**, that is the right to enter into alliances with foreign powers and to wage war provided those alliances or wars were neither against the empire nor against public peace and the treaty.
- Accordingly, a number of small countries were upgraded to members of the international communities with almost sovereign rights.
- Thirdly, the treaties crystallized a political distribution of power in Europe that saw the decline in the Church and the de facto disintegration of the empire and the birth of an international order based on a multiplicity of independent states recognizing no superior powers or authority over them.

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- Accordingly, the treaties recognized the principles of sovereignty, territorial integrity and equality of states as independent members of an international system. (China equal to Nauru, Tuvalu, Maldives)
- Each country carries one vote regardless of power, population) (23% US/ 0.04% Kenya's contribution to UN budget)
- The period from the Peace of Westphalia to the congress of *Vienna in 1815* is considered as a period of formation of classical international law.
- The period witnessed the breakup of the feudal state system and the formation of society into free nation states.

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- The congress of Vienna ended *25 years* of the Napoleonic War in Europe.
- It was convened by four European powers which had defeated Napoleon with the main objective of establishing a balance of powers of political forces in Europe which would ensure lasting peace and maintain a status quo in Europe by repressing political warships.
- International law greatly expanded during the rest of the *19th Century* mainly due to the rise of powerful states in and outside Europe, the expansion of European influence overseas and modernization of the world transport, the greater destructiveness of modern warfare and influence of new inventions.

Continued

- All these made it urgent for international societies of states to acquire a new system of rules which would regulate in an ordered fashion conduct of international states affairs.
- There was remarkable development in the law of war and neutrality and great increase in adjudications in international arbitral tribunals as provided sources for rules.
- Besides, states commenced to acquire the habit of negotiating of general treaties in order to regulate the affairs of mutual legal concerns.

Continued

- Throughout this period, international law was based on five principles namely;
- Sovereignty
- Balance of powers
- Legitimacy of government
- Nationality
- Equality
- Other important developments took place in the 20th century;

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- *The Permanent Court of Arbitration (P.C.A)* was established by the Hague conferences of *1899 and 1907*.
- Following WWI, the legal measure was created as an international organization designed to prevent the recurrence of armed world conflicts.
- *Permanent Court of International Justice*: was set up in 1921 as an authoritative *International Judicial tribunal*-
- *The league and the court* were succeeded in *1946* by the U.N organization and the international court of justice respectively established after WWII.
- There was also the creation of *Permanent International Intergovernmental organizations* whose functions are in effect with those of world government interests of peace of the world and human welfare e.g. ILO, FAO, ITU, WHO

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- The scope of international law was also expanded to cover not only every kind of economic and social interests affecting states but also the vast and complex areas of international concerns e.g. law of the sea, environment, nuclear energy, international crime, communications and human rights and interests affecting states.
- As a result, the influence of writers has tended to decline with the consequence that international law rules have been positively tailored to cater for modern developments in technology, economic exigencies and social economic and political affairs of the world.

Continued

- The last century also witnessed a great number of multilateral treaties laying down rules to be observed in interstate relations as well as rules of arbitration to settle international disputes.
- The I.C.J has made an important contribution to the development of international law of Jurisprudence.
- Similarly, the international law commission since its creation in *1947* by the UN General Assembly has worked on the codification and progressive development of international law thereby ensuring greater certainty and stability.
- Rules of *customary international law* have also been codified and consequently made more precise and specific.

Continued

- Customary International law consists of rules of law derived from the consistent conduct of states acting out of belief that the law required them so to act that way.
- It can be discerned by a widespread repetition by states of similar international acts over time.
- Finally, the last century also witnessed massive participation of the newly independent states of Africa, Asia and the Pacific in the International Law undertakings.
- From a relatively small membership of *42 states in 1919* when the League of Nations was created, the UN currently has a membership of *193 states*.

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- These newly independent states realized that many international law rules did not fully respond to their needs and reflect their concerns and hence taken an active part in the readjustment of the old rules to the new economic and political realities.
- **N/B** The impact of this new development is reflected in the content and scope of contemporary international law namely, the shift from Euro centrism to Universalism thereby diminishing the Western European Supremacy over International Law.

The Nature and Scope of Public International Law

- ***Characteristics or Nature of International Law***
- International law is distinct from international comity, which comprises legally non-binding practices adopted by states for reasons of courtesy (e.g. the saluting of the flags of foreign warships at sea.)
- It is distinct from conflict of laws.
- It is universal in its nature.
- The nature of international law is similar to the natural law.
- It is equal to everyone.
- It evolved through the consent of the states.

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- With regard to international law there is no uniformity on approaches. For a long time, there was a controversy about whether it is really a law or a branch of ethics or it is a weak law or even a vanishing point of jurisprudence.
- It is a combination of treaties and conventions.
- It is based on five principles.
 1. Sovereign equality
 2. Pacta sunt servanda (treaties must be observed in good faith)
 3. Peaceful settlement of international disputes
 4. Non-use of force
 5. Non-interference

Continued

- It is a result of combination of various scholars e.g.
 - 1) Naturalists: Francisco de Victoria, Francisco Suarez, Gentili, Hugo Grotius, Zouche, Samuel Pufendorf
 - 2) Positivists: Bykershoek, Vattel, Jeremy Bentham, John Austin
- Its main purpose is to maintain international relations.
- There is a paradigm shift after the end of bipolar system.
- i.e. after the end of cold war between socialists and capitalists block, international law got comfortable environment to facilitate the process of globalization on economy, democratization, good governance, refugee settlement, human rights, privatization, inclusiveness in power liberalization, co-operation e.t.c.

Continued

- It is based on consent not by force.
- It evolved through the consent of states.
- It is law of nations.
- It is more dynamic by science and technology.
- It has the aim of universal justice through prohibitory, mandatory and permissive actions.
- It is weaker than municipal or national law.
- It has no centralized legislative, executive and judiciary.

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- **Scope of Public International Law**
- The scope of international law is fully extended to independent states.
- International law began as a system governing the relations among sovereign states and states have always been the primary legal entities affected by international law.
- Although in certain cases national law may impose international duties upon private persons, e.g. the obligation to desist from piracy.

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- New rights and duties have been imposed on individuals within the framework of International law by the decisions in the war crimes trials as well as the treaty establishing the International Criminal Court (ICC) (see war crimes), by genocide convention and by the Universal Declaration of Human Rights (UDHR) (see Economic and Social Council).
- The major development in the 19th and 20th century in international law is the prominent position of the international organizations.
- In general, it touches state and non-state actors.

Is International Law Really Law?

- ***Naturalism v. Positivism***
- There has been a lot of controversy regarding this question.
- Some answered the question in negative while others in the affirmative.
- Some feel that international law lacks the element of certainty, stability and predictability.
- ***Not a true law (Positivism)***
- ***John Austin***, a leading English writer on Jurisprudence supports the view that international law is not a law.

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- As per him, it is a code of moral force and rules of conduct only.
- In his opinion, international law does not have any sanction behind it and it doesn't emanate from a law giving authority.
- He described international law as the one consisting of positive international morality and opinions or sentiments which are followed by the nations as per their own wish.
- **Hobbes and Pufendorff** are also of the view that it is not true law as the law is not truly invested with true legal force and it is not backed by the command of the superior.

Continued

- **Holland** is of the view that it is extremely different from ordinary laws as it is not supported by the State's authority.
- As per him, the private law is writ large (clear and obvious or bigger and easier to see).
- he describes it as a vanishing point of jurisprudence.
- He is of the view that as it lacks sanction (which is the most important element of municipal law) it can not be kept in the category of true law.

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- **A true law (Naturalism)**
- **Hall and Lawrence** consider it as true law.
- According to them, it is derived from custom and precedents which are a source of law and it is habitually treated like a certain kind of positive law.
- **Sir Frederick Pollock** observed that for international law to be binding upon the members, the only essential conditions are the existence of a political community and the recognition by its members of settled rules binding upon them in that capacity.
- International law wholly satisfies these conditions.

Purpose of Public International Law

- The main purpose is to promote justice, peace and common interest. It also helps in:
 - I. Promotion of friendly relations among the member states (members of the international community, e.g. UN)
 - II. Providing for basic humanitarian rights
 - III. To solve international problems through international cooperation
 - IV. To refrain the state from using threat or force over the territory of any other state to provide for the right to self-determination to people and
 - V. To use peaceful methods to settle international disputes are few of its functions.

Weakness and Criticism of International Law

- ***Merits (Benefits)***

- State's Interest Protection
- Welfare of human being
- Unity and strength

- ***Demerits (weakness)***

- No apparent authority for the enforcement of the law.
- No legislative machinery.
- Lack of effective sanctions
- Inability to intervene